

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Vale	Team: Squad #06	CCRB Case #: 201703447	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 05/02/2017 10:20 PM	Location of Incident: Grand Concourse and East 198th Street	18 Mo. SOL 11/2/2018	Precinct: 52
Date/Time CV Reported Wed, 05/03/2017 1:53 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/03/2017 1:53 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edgar Rivera	05576	955381	052 PCT
2. An officer			052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Lindquist	06307	955068	052 PCT
2. POF Gina Mestre	11607	955191	052 PCT
3. POM Brian Vanduzer	02650	955618	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	A . Officer(s) Unidentified
B . POM Edgar Rivera	Discourtesy: Police Officer Edgar Rivera spoke discourteously to § 87(2)(b)	B . Unfounded
C . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera refused to provide his name to § 87(2)(b)	C . Substantiated
D . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	D . Officer(s) Unidentified

The investigation was completed after 90 days due to difficulties in identifying and scheduling all officers involved in this complaint.

Case Summary

On May 3, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On May 2, 2017, at approximately 10:20 p.m., PO James Lindquist, PO Edgar Rivera, PO Gina Mestre, and PO Brian Van Duzer of the 52nd Precinct stopped § 87(2)(b)'s vehicle on the corner of Grand Concourse and East 198th Street in the Bronx, for a defective third brake-light located on the rear of § 87(2)(b)'s vehicle. § 87(2)(b) took out his cell phone recorded the incident. An unidentified officer told § 87(2)(b) to “shut the fuck up” (**Allegation A**). PO Lindquist asked § 87(2)(b) to provide his license and registration. § 87(2)(b) provided his license and registration to PO Lindquist which were then given to PO Mestre. PO Mestre and PO Van Duzer entered into the police vehicle while PO Lindquist and PO Rivera remained standing by § 87(2)(b)'s vehicle. As § 87(2)(b) was recording, PO Rivera allegedly told him that he would look “stupid and scared on camera” (**Allegation B**). § 87(2)(b) asked PO Rivera to provide his name and PO Rivera did not provide it (**Allegation C**).

A few minutes later, PO Mestre exited the police vehicle, approached the driver's side window of § 87(2)(b)'s vehicle, and handed § 87(2)(b) his license, registration and a folded summons inserted within § 87(2)(b)'s documents. § 87(2)(b) took the documents, without realizing he had been issued a summons, and threw them onto the front passenger's seat. He then drove off from the location. A few minutes later, § 87(2)(b) realized that he had been issued summons #§ 87(2)(b) for § 87(2)(b). On the yellow copy of the summons given to § 87(2)(b) was a hand drawn image of a phallus (Board Review 01) (**Allegation D**).

§ 87(2)(g)

§ 87(2)(g)

Video Footage

- § 87(2)(b) provided video footage that he recorded during this incident. Majority of the video footage shows the center console inside of § 87(2)(b)'s vehicle although audio from the incident can be heard. The original videos can be viewed in IAs #14 – 17, and a snag-it version of the videos can be viewed in IA#54 (Board Review 02).
- Relevant clips of the videos have been attached in the relevant portions of the Findings and Recommendations Section below.



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Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediate his complaint § 87(2)(b).
- According to the NYC Comptroller's Office, as of June 28, 2017, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has one prior CCRB complaint (Board Review 05).
 - § 87(2)(b)
- § 87(2)(b) has three cases currently open with the CCRB: 201700410, 201703038 and 201703383, which are all pending Board review.
- PO Rivera has been a member of the NYPD for four years and has two allegations in two cases with no substantiated allegations (see officer history). He is currently involved in open CCRB case #201702768, and case #201703383, § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

On May 3, 2017, § 87(2)(b) provided a phone statement and was interviewed at the CCRB on May 4, 2017 (Board Reviews 06 and 07). § 87(2)(b) stated that there were three officers present during the incident: PO Rivera, PO Lindquist, and PO Mestre. The investigation determined that PO Van Duzer was also present during the incident.

Although § 87(2)(b) alleged that PO Rivera told him to "shut the fuck up," PO Rivera denied ever making this statement. § 87(2)(b) believed PO Rivera made this statement given that it was a male officer who stood by the passenger's side who made this statement. Based off of PO Mestre's, PO Lindquist's, and PO Rivera's testimonies, during the initial approach of § 87(2)(b)'s vehicle, both PO Rivera and PO Van Duzer stood by the passenger's side (Board Reviews 08 – 10). Video footage obtained for this incident provided audio in which multiple voices were heard speaking at the same time. § 87(2)(b) is then heard asking an officer, "What'd you state? Shut the fuck up?" He did not indicate in the video who he was speaking to. § 87(2)(g)

§ 87(2)(b) alleged that PO Mestre drew an image of a phallus on the summons issued to him since she was the issuing officer as well as the officer who handed his documents back to him. § 87(2)(b) did not witness which officer drew the image on the summons and he was unaware of he had received a summons until after leaving the incident location.

After receiving § 87(2)(b)'s documents, PO Mestre and PO Van Duzer entered into the police van to run § 87(2)(b)'s license for any open warrants. It was PO Mestre's decision to issue § 87(2)(b) a summons for a defective third brake-light. PO Mestre stated that she did not have any summonses on her, and therefore, she asked to use a summons from PO Van Duzer's summons book (Board Review 08). PO Mestre took a summons book from PO Van Duzer to issue § 87(2)(b) a summons. She did not see the drawn image of a phallus on the cover page of the summons and did not flip open the summons book to see if anything had been written or drawn on any of the pages in the summons book. She denied drawing the image and she did not know who drew it. She did not see PO Van Duzer draw on the summons and stated that the only contact she witnessed PO Van Duzer have with the summons was when he handed the summons book to her. PO Mestre took the yellow carbon copy of the summons, folded it in half, and placed it into the pile of § 87(2)(b)'s documents. She exited the police vehicle and approached § 87(2)(b)'s vehicle. She did not hand the summons copy to PO Lindquist and PO Rivera. PO Mestre stated that she was not aware that the image was drawn on the summons until her CCRB interview.

PO Van Duzer corroborated that PO Mestre borrowed a summons book from him (Board Review 11). PO Van Duzer went into his memo book, took out a blank summons book and handed it to PO Mestre. He did not see any images drawn on the summons cover. PO Van Duzer denied drawing the image of a phallus on the summons and he did not see PO Mestre draw the image. He was unaware of the drawn image until several days later when an officer informed him of the drawing. He did not witness PO Lindquist and PO Rivera come in contact with the summons since he remained in the police vehicle when PO Mestre exited to return the documents to § 87(2)(b).

PO Lindquist and PO Rivera both corroborated that they did not come in contact with the summons at any time throughout the incident (Board Reviews 09 and 10). They corroborated that they were first made aware of the drawn image on § 87(2)(b)'s copy of the summons by watching the news report covering this incident. PO Lindquist did not witness PO Mestre and PO Van Duzer draw the image on the summons and he did not know who drew the image.

A copy of the summons scanned into the NYPD summons database was obtained which did not show any drawn images on the summons.

§ 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A – Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that a male officer standing by the passenger's side of his vehicle told him to "shut the fuck up." He believed that PO Rivera made the statement given that PO Lindquist stood by the driver's side while PO Rivera stood by the passenger's side. § 87(2)(b) was unaware that PO Van Duzer, a male officer, was also present during the incident and that PO Van Duzer stood by the passenger's side of his vehicle.

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **officers unidentified**.
Allegation B – Discourtesy: Police Officer Edgar Rivera spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that as he sat in his vehicle conversing with PO Rivera and PO Lindquist while recording on his cell phone, PO Rivera told him that he would look “stupid and scared on camera” (Board Review 06).

In the audio obtained from the video footage § 87(2)(b) recorded for this incident, PO Rivera is heard telling § 87(2)(b) that he would look “crazy scared” on camera.



2017-08-02_10-52-25.mp4

PO Rivera did not recall telling § 87(2)(b) that he would look “stupid” on camera and did not recall using any profanity while speaking to § 87(2)(b) (Board Review 10).

According to the video footage obtained for this incident, PO Rivera told § 87(2)(b) that he would look “crazy scared” on camera and did not tell § 87(2)(b) that he would look “stupid and scared” on camera.

§ 87(2)(g)

therefore, it is recommended that **Allegation B** be **unfounded**.

Allegation C – Abuse of Authority: Police Officer Edgar Rivera refused to provide his name to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that he pointed his cell phone camera towards the front passenger’s side window where PO Rivera was standing and asked him to provide his name (Board Reviews 05 and 06). PO Rivera responded that it was on his name tag. § 87(2)(b) told PO Rivera that he was unable to see the name tag. PO Rivera stated that it was not his problem if § 87(2)(b) was unable to read his name off the name tag. § 87(2)(b) then asked PO Rivera to verbally provide his name and PO Rivera did not provide it.

Video footage for this incident shows § 87(2)(b) pointing the cell phone camera towards the center console. § 87(2)(b) is heard asking PO Rivera to provide his name. PO Rivera asks § 87(2)(b) if he knows how to read and states, “It’s right there.” § 87(2)(b) tells PO Rivera to take the “light” out of his face, referring to the flashlight PO Rivera has pointed into the vehicle, so that he can see the name tag. PO Rivera replies that the light is not in § 87(2)(b) s face and if § 87(2)(b) cannot read it is not his fault. He tells § 87(2)(b) that he can get out of his vehicle to read his name tag and reiterates that if § 87(2)(b) cannot read it is not his fault. § 87(2)(b) then points the cell phone camera towards PO Rivera who can be seen leaning his head next to the front passenger’s side window while pointing a flashlight into § 87(2)(b) s vehicle. PO Rivera tells § 87(2)(b) to capture the good side of his face.



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PO Rivera stated that he did not recall § 87(2)(b) asking him for his name and he did not recall refusing to provide it (Board Review 10). PO Rivera was shown the video footage recorded by § 87(2)(b) regarding this incident. He stated that in the video when he told § 87(2)(b) “it’s right here” he was telling § 87(2)(b) to read his name off his name tag. During his CCRB interview, PO Rivera pointed at his chest towards his name tag. When asked if he had pointed towards his name tag on the incident date, PO Rivera replied that “it could have been” something that he did.

A member of service must courteously and clearly state his rank, name, shield number and command, or otherwise provide them, to anyone who requests him to do so. Patrol Guide Procedure 203-09 (Board Review12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be **substantiated**.

Allegation D – Discourtesy: An officer acted discourteously toward § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) did not realize he was issued a summons until after his interaction with the officers, and therefore, he did not witness which officer drew the image on the summons. PO Mestre and PO Van Duzer denied drawing the image on the summons. All officers interviewed for this incident corroborated that they did not become aware of the drawn image until after the incident. The summons copy that was scanned into the NYPD summons database did not show the drawn image. § 87(2)(g)

it is therefore recommended that **Allegation D** be closed as **officers unidentified**.

Squad: 6

Investigator: _____
Signature Diana Vale _____
Print Date

Squad Leader: _____ Jessica Peña _____
Title/Signature Print Date

Reviewer: _____ _____
Title/Signature Print Date